

Multiple Choice (10 marks)

1. What is the protective principle of jurisdiction?
 - (a) It is jurisdiction based on the harm to national interests by conduct committed abroad
 - (b) It is jurisdiction in order to protect one's nationals abroad
 - (c) It is jurisdiction in order to protect international human rights
 - (d) It is jurisdiction based on the nationality of the offender
2. Critical Legal Studies (CLS) is often compared to (or with) American realism. Which of the following statements is inaccurate?
 - (a) Both are concerned with the 'law in action.'
 - (b) Both are anti-formalist and sceptical
 - (c) Both adopt a liberal ideology.
 - (d) Both attempt to demystify the law.
3. Soft positivism accepts that the rule of recognition may include moral criteria.' Which proposition below is the most inconsistent with this description?
 - (a) Incorporationism' accepts that judges may decide cases by reference to moral factors.'
 - (b) A soft positivist rejects the role of morality in the description of law.
 - (c) Sometimes the definition of law includes moral considerations.
 - (d) Judges lack strong discretion.
4. Which philosopher called the idea of natural rights 'nonsense on stilts'?'
 - (a) Alan Gerwith
 - (b) Emmanuel Kant
 - (c) John Locke
 - (d) Jeremy Bentham
5. Which of these statements best describes the UK Constitution?
 - (a) The UK Constitution's only source of power is that of the sovereign
 - (b) The UK Constitution gives the judiciary the power to overturn acts of parliament
 - (c) The UK Constitution is uncoded and can be found in a number of sources
 - (d) The UK Constitution is based on a Bill of Rights

True / False (10 marks)

Answer True or False

6. True or False: The Law and Economics School believes that legal rules are always beneficial for society and promote fairness and efficiency.
7. True or False: Fuller's 'inner morality of law' is best understood as a morality of aspiration, emphasizing ideals that law should strive to achieve.
8. True or False: Kant's categorical imperative requires individuals to prioritize their own interests over the needs of the community.
9. True or False: In contemporary international practice, recognition of governments has largely been replaced by functional recognition.
10. True or False: The rule of recognition confers power on judges while also imposing duties to decide cases according to established legal rules.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the implications of Maine's aphorism that 'the movement of progressive societies has hitherto been a movement from Status to Contract' and analyze how it is often misinterpreted as a prediction.
12. Discuss the relationship between customary law and treaty provisions, examining how treaties can influence the development, codification, or crystallization of customary law.

End of Paper